
MEMORANDUM

TO: Mayor Patrick Collins, and City Council
FROM: TJ Barttelbort, Purchasing Manager 
DATE: February 8, 2023
SUBJECT: Professional Services Agreement between the City of Cheyenne and BenchMark Engineers, PC for the Transfer Station Lift Station Upgrade or Replacement Project

Two (2) Responsive Proposals were submitted under Request for Proposal (RFP) #4-23, for the Transfer Station Lift Station Upgrade or Replacement Project.

The proposals were received from:

1. BenchMark Engineers, PC. Cheyenne, Wyoming
2. Burns & McDonnell. Centennial, Colorado

Upon review of the two (2) responsive proposal by the evaluation panel, the group has recommended acceptance of the proposal submitted by BenchMark Engineers, PC, for a project award amount of \$88,425.00

Basis for award was based on a Qualifications based review and scoring of proposals: BenchMark Engineers, PC submitted the highest scoring proposal, therefore their sealed pricing envelope was opened.

Funding: 023-14-1417-43-43501 (Solid Waste Fund / Improvements)
\$88,425.00

City Contract No. _____

PROFESSIONAL SERVICES AGREEMENT
for
TRANSFER STATION LIFT STATION
UPGRADE OR REPLACEMENT

This Professional Services Agreement (“Agreement”) is made and entered into by and between the **City of Cheyenne**, located at **2101 O’Neil Avenue, Cheyenne, Wyoming 82001** (“City”), and **BenchMark Engineers, PC**, located at **1920 Thomes Avenue, Suite 320, Cheyenne Wyoming 82001** (“Consultant”). This Agreement shall become effective upon the date of the last signature affixed hereto.

RECITALS

In consideration of the mutual covenants and obligations herein expressed, it is agreed by and between the parties as follows:

1. SCOPE OF WORK

The Consultant agrees to provide services for the **Transfer Station Lift Station Upgrade or Replacement Project**, in accordance with **City of Cheyenne Request for Proposal (RFP) #4-23**, incorporated herein by reference, and the **Consultant’s submitted proposal**, incorporated herein by reference.

2. TIME OF PERFORMANCE

The work included in this Scope of Work will be completed by **October 31, 2023**.

3. COMPENSATION

In consideration of the services to be performed pursuant to this Agreement, the Consultant will bill the City and the City agrees to pay Consultant a not to exceed amount of **Eighty-Eight Thousand, Four Hundred Twenty-Five Dollars (\$88,425.00)** as stated in **Exhibit B – Price Proposal**.

4. CONSULTANT RESPONSIBILITY

In providing services under this Agreement, the Consultant shall perform in a manner consistent with that degree of care and skill ordinarily exercised by members of the same profession currently practicing under similar circumstances. Upon notice to the Consultant, the Consultant will, without additional compensation, correct those services not meeting such a standard.

5. COMPLIANCE WITH LAWS

The Parties agree that they will perform their obligations as provided in this Agreement in accordance with all applicable laws and ordinances.

6. DRUG-FREE WORKPLACE

In compliance with the Drug-Free Workplace Act of November 1988, the City of Cheyenne has established an Alcohol and Controlled Substance Policy that pertains to alcohol and drug usage by City Employees. All architects, engineers, and other consultants under contract with City of Cheyenne, and their employees and sub-consultants, are required to comply with the provisions of the City's Alcohol and Controlled Substance Policy for drug and/or alcohol usage on City property or other sites occupied by the Consultant while performing the duties and responsibilities of the Agreement. It is the responsibility of the Consultant to familiarize themselves with the requirements of this policy and to inform all their employees and sub-consultants of the requirements and ensure their compliance. If the Consultant, their employees or sub-consultants are found in violation of this policy, the Agreement may be terminated.

7. INDEMNIFICATION/HOLD HARMLESS

The Consultant agrees to indemnify, hold harmless, and defend the City from and against any and all liabilities, claims, penalties, forfeitures, and suits, and the cost and expenses incident thereto, including reasonable attorney's fees, which may hereafter arise as a result the performance of the Consultant's duties, including death or bodily injury to any person, destruction or damage to any property, contamination of or adverse effects on the environment, or any violation of governmental laws, regulations, or orders to the extent caused by (1) the Consultant's breach of any term or provision of this Agreement; or (2) any negligent or wrongful act, error, or omission by the Consultant, or its employees or sub-consultants in the performance of this Agreement. The Consultant acknowledges that it may incur a financial obligation to the City pursuant to the terms of this paragraph.

8. INSURANCE REQUIREMENTS

The Consultant must provide proof of the following insurance coverages:

Commercial General Liability Insurance

For claims arising out of bodily injury, illness, or death, or from damage to or destruction of property of others, including loss or use thereof, with minimum limits of \$1,000,000 per occurrence, \$2,000,000 aggregate for the entire term of the Agreement.

Workers' Compensation

Workers' compensation coverage shall be in effect for the entire term of the Agreement, as required by Wyoming law, for all employees or agents providing services under this Agreement. Consultant shall provide the City with proof of workers' compensation or employer's liability insurance coverage.

Professional Liability Insurance

The Consultant shall provide proof of professional liability insurance or errors and omissions liability insurance in an amount not less than \$500,000 to protect the City from any and all claims arising from the Consultant's negligence in the performance of duties under this Agreement. The City prefers that this liability insurance coverage be provided pursuant to an "occurrence" policy.

If this coverage is provided pursuant to a "claims made" policy:

- a. Consultant shall, concurrently with the execution of this Agreement, provide the City with a certificate of insurance demonstrating that such coverage is or shall be in effect at the time the Consultant begins the provision of services under this Agreement; and
- b. In the event the Consultant's services extend into a future policy period, the Consultant shall, prior to the policy expiration date, provide the City with a new certificate of insurance demonstrating that such coverage is or shall be in effect during all periods of time that Consultant will provide services under this Agreement; and
- c. Consultant shall maintain said "claims made" coverage for a period of five (5) years following the last date that Consultant has provided services under this Agreement; and
- d. In the event the Consultant or the insurer terminates "claims made" coverage prior to the expiration of the periods provided in subparagraphs a., b., or c. of this paragraph, the Consultant shall provide to the City advance written notification of the termination of said coverage and shall provide the City with an endorsement for an extended reporting period ("tail coverage") which shall be in effect for a period of time not less than five (5) years following the last date that Consultant has provided services under this Agreement.

Additional Insurance Information

The Consultant shall name the City of Cheyenne as **an Additional Insured** by endorsement on its insurance policies and shall provide the City with a copy of the endorsements. This requirement does not apply to workers' compensation and professional liability insurance policies.

Consultant shall provide the City with certificates of insurance acknowledging the above-stated coverages prior to beginning any work under this Agreement.

It is understood and agreed that these policies are primary and not contributory. All policies required under this Agreement shall be in effect for the duration of the Agreement. It shall be an affirmative obligation upon Consultant to immediately notify in writing the city risk manager, city clerk, and city attorney of any fact, circumstance, or occurrence that has resulted in or may result in the cancellation of, or substantive change to any insurance coverage required by this Agreement, and failure to do so shall be construed to be a breach of this Agreement.

If requested by the City, the Consultant shall provide the City with copies of insurance policies and/or policy endorsements listing the City of Cheyenne as an additional insured. The City's failure to request or review such policies, endorsements, or certificates shall not affect the City's rights or Consultant's obligation hereunder.

Any insurance company providing coverage under this Agreement shall have a minimum A. M. Best rating of A- (excellent).

9. MINORITY AND DISADVANTAGED BUSINESS ENTERPRISES 49 C.F.R. Part 26
All parties to this Agreement assure that no person will be excluded from participation in, denied the benefits of, or otherwise discriminated against, in connection with the award and performance of this Agreement on the grounds of age, race, color, disability, national origin, or sex.
10. MONTHLY REPORT
With every monthly billing, Consultant shall provide the City Representative with a written statement of the status of the work with respect to the Scope of Work, time sheets, and work schedule. Failure to provide the required monthly report will delay processing of any payment request until the report is submitted.
11. INDEPENDENT CONSULTANT
The Consultant shall function as an independent consultant for the purposes of this Agreement. The Consultant shall assume sole responsibility for any debts or liabilities that may be incurred by the Consultant in fulfilling the terms of this Agreement. Nothing in this Agreement shall be interpreted as authorizing the Consultant or its agents or employees to act as an agent or representative of or on behalf of the City or to incur any obligation of any kind on the behalf of the City.
12. TAXES
The Consultant agrees to pay all valid taxes, excises, license fees, permit fees, bills, debts, and obligations incurred by and in connection with its operations under this Agreement.
13. DEFAULT
Each and every term and condition in this Agreement shall be deemed to be a material element of the Agreement. In the event either party should fail or refuse to perform according to the terms of this Agreement, such party may be declared in default.
14. REMEDIES
In the event a party has been declared in default, such defaulting party shall be allowed a period of fifteen (15) days within which to cure the default. In the event the default remains uncorrected, the non-defaulting party declaring default may elect to:
 - a. Terminate the Agreement and seek damages, which damages shall not exceed the contract amount; or

- b. Treat the Agreement as continuing and require specific performance.

15. TERM AND TERMINATION

The term of this Agreement shall be from date of execution to **October 31, 2023**. The parties may by mutual written agreement renew or extend this Agreement.

The City may, without cause, and upon thirty days' written notice to the Consultant, terminate this Agreement in whole or in part at any time, for the City's convenience. Upon receipt of such notice, the Consultant shall:

- a. Discontinue all services affected; and
- b. Deliver to the City within five (5) days all data, drawings, specifications, reports, estimates, summaries, and such other information and materials as may have been accumulated by the Consultant in performing this Agreement, whether completed or in process.
- c. In the event of termination for convenience, the City will pay the Consultant for accepted work done and expenses incurred to the date of termination. Such acceptance shall not be unreasonably withheld.

16. ADDITIONAL REMEDIES

In the event the Consultant fails to strictly perform in accordance with this Agreement, the City may elect to correct the deficiencies and charge the Consultant. In the event of default of any of the conditions by either party which shall require the party not in default to commence legal or equitable action against the defaulting party each party shall bear its own costs and expenses, including without limitation, attorney's fees.

17. GOVERNING LAW, JURISDICTION AND VENUE

The construction, interpretation, and enforcement of this Agreement shall be governed by the laws of the State of Wyoming. The courts of the State of Wyoming shall have jurisdiction over any action arising out of this Agreement and over the parties, and the venue shall be the First Judicial District, Laramie County, Wyoming.

18. GOVERNMENTAL IMMUNITY

The City of Cheyenne, along with its officials and employees, does not waive its governmental immunity by entering into this Agreement, except to the extent necessary for the parties to pursue a contract action to clarify or enforce the written terms of the Agreement. Furthermore, the City specifically retains all immunities and defenses available to it as a sovereign or governmental entity pursuant to Wyo. Stat. § 1-39-101, *et seq.*, and all other relevant state and federal law. Designations of venue, choice of law, enforcement actions, and similar provisions should not be constructed as a waiver of governmental immunity. The parties agree that any ambiguity in this Agreement shall not be strictly construed, either against or for either party, except that any ambiguity as to governmental or sovereign immunity shall be construed in favor of governmental immunity.

19. MONITORING ACTIVITIES

The City shall have the right to monitor all activities related to this Agreement that are performed by the Consultant or its sub-consultants. This shall include, but not be limited to, the right to make site inspections at any time and with reasonable notice; to bring experts and consultants on site to examine or evaluate completed work or work in progress; to examine the books, ledgers, documents, papers, and records pertinent to this Agreement; and to observe personnel in every phase of performance of the related work.

20. OWNERSHIP OF DOCUMENTS AND WORK PRODUCT

All deliverables by the Consultant, all work product of the Consultant, all notes, calculations, memoranda, or any other documentation generated by the Consultant pursuant to the scope of this Agreement, shall be the property of the City of Cheyenne and shall be provided to the City of Cheyenne immediately upon request.

21. NON-DISCRIMINATION

The Consultant shall comply with the Civil Rights Act of 1964, the Wyoming Fair Employment Practices Act (Wyo. Stat. § 27-9-105, *et seq.*), the Americans With Disabilities Act (ADA), as amended, 42 U.S.C. § 12101, *et seq.*, and the Age Discrimination Act of 1975 and any properly promulgated rules and regulations thereto, and shall not discriminate against any individual on the grounds of age, sex, creed, color, race, religion, national origin, ancestry, pregnancy or qualifying disability in connection with the performance under this Agreement.

22. FORCE MAJEURE.

The performance of the Agreement by either party shall be subject to force majeure including, but not limited to, acts of God, fire, flood, natural disaster, war or threat of war, acts or threats of terrorism, civil disorder, unauthorized strikes, governmental regulation or advisory, recognized health threats as determined by the World Health Organization, the Centers for Disease Control, or local government authority or health agencies (including, but not limited to, the health threats of COVID-19, H1N1, or similar infectious diseases), curtailment of transportation facilities, or other similar occurrence beyond the control of the parties, where any of those factors, circumstances, situations, or conditions or similar ones prevent, dissuade, or unreasonably delay the performance required by this Agreement. The Agreement may be cancelled by either party, without liability, damages, fees, or penalty, and any unused deposits or amounts paid shall be refunded, for any one or more of the above reasons, by written notice to the other party.

23. PROFESSIONAL REGISTRATION

The Consultant shall endorse, as required by law, plans and reports prepared under this Agreement, and shall affix thereto his or her seal of professional registration, showing that he or she is licensed to practice in the State of Wyoming, if necessary.

24. ENTIRETY OF AGREEMENT

This Agreement consisting of seven (7) pages, Exhibit B – Price Proposal, consisting of four (4) pages, Request for Proposal RFP 4-23, consisting of twenty-seven (27) pages,

Addendum One, consisting of nine (9) pages, and the Consultant's submitted proposal, consisting of twenty-six (26) pages, contains the entire understanding of the parties. There are no other terms or conditions, written or oral, concerning or controlling this matter.

IN WITNESS WHEREOF, the Parties to this Agreement, through their duly authorized representatives, have executed this Agreement on the days and dates set out below and certify that they have read, understood, and knowingly and voluntarily agreed to the terms and conditions of this Agreement. This Agreement may be executed in multiple counterparts, each of which shall be deemed an original, but all of which together shall constitute one and the same instrument.

City of Cheyenne

(SEAL)

By: _____
Patrick Collins, Mayor

Attest:

Kristina F. Jones, City Clerk

Date: _____

Consultant

By: _____

Print Name: _____

Date: _____



BenchMark
ENGINEERS, PC
Quality minded, community spirited.

January 4, 2023

City of Cheyenne
Purchasing, Attn: TJ Barttelbort
2101 O'Neil Avenue, Rm. 309
Cheyenne, WY 82001

**RE: Transfer Station Lift Station Upgrade or Replacement – RFP 4-23
Fee Proposal**

Dear Mr. Barttelbort:

BenchMark Engineers, PC (BME) along with MSI, Inc. is providing the enclosed fee schedule for the described professional engineering services to the City of Cheyenne for the inspection, testing, and upgrade or possible replacement of the lift station for the City of Cheyenne's Transfer Station located at 220 College Drive, Cheyenne, Wyoming, as stated in the Request for Professional Services document 4-23.

I believe you will find that our estimated fee is very competitive for the work described and ultimately anticipated. We have provided a fee based on the Request for Proposals, additional information provided, the pre-proposal meeting, the Scope of Work, addendums, and the deliverables anticipated. Our successful record keeping within budgets and the fact that we have an excellent reputation for not requiring/requesting Change Orders speaks volumes to the quality of our work from conceptual phases, to plans production and completion of construction. One example is the fact that we have contracted with Laramie County for over 28 years as the County Engineer and we have never once asked for a Change Order. Another example includes the fact we have had numerous contracts with the City of Cheyenne over the past 28 years and we have only asked for one Change Order on one project that resulted in a 0.4% increase to the contract.

MSI, Inc. will only be involved with the inspection and testing of the existing lift station. They will not be involved with the preparation of the construction drawings, specifications, quantities, bid items, cost estimates, etc. By limiting their scope, this will allow them to comply with State Statutes and be able to bid the project.

In addition, you can be assured that all the work performed on this project will be by individuals who live and work in Cheyenne. Therefore, the money spent on this project will be kept locally to support local families and businesses.

Please keep in mind that we believe our fee estimate is based on the work described. However, significant modifications to the scope of work and/or schedule, based on negotiations with the City staff, may impact our team's fees. Upon selection, we look forward to discussing your ideas and finalizing the scope of work to ensure the best possible project and product for the City.

If you have any questions or require additional information, please do not hesitate to contact me.

Sincerely,

Scott D. Larson, P.E., President

t: 307.634.9064 / f: 307.778.8010

1920 Thomas Avenue, Suite 320

Cheyenne, Wyoming 82001

BenchMarkEngineers.com

t: 970.232.3335

155 E. Boardwalk Drive, Suite 400-451

Fort Collins, Colorado 80525

City of Cheyenne / Exhibit B - Price Proposal / Professional Services Agreement / RFP 4-23
Transfer Station Lift Station Upgrade or Replacement Project

“EXHIBIT B”**COMPENSATION SCHEDULE**

The Consultant shall prepare and submit proposed estimated compensation, bearing in mind that it should be a unit-based contract with a negotiated not-to-exceed amount. A Payment Schedule based upon the following and any other pertinent payment schedule shall be submitted with payment for a specific phase not exceeding the scheduled amount prior to completion of that phase:

Preliminary Design Phase	\$ 24,200_____.
Final Design Phase	\$ 41,925_____.
Operations & Maintenance Plan	\$ 800_____.
Construction Administration Phase	\$ 21,500_____.
Total Contract Amount	\$ 88,425_____.

Include this page as a part of the TRANSFER STATION LIFT STATION UPGRADE OR REPLACEMENT – PRICE PROPOSAL submission.

Transfer Station Lift Station Upgrade or Replacement – Fee Proposal

Transfer Station Lift Station Upgrade or Replacement													
Scott		Don		Ryan		Will		Eli		Julie		Expenses & Subs	
Principal	Sr. Prof.	Proj. Mgr.	Proj. Engr.	Prof. II	Prof I	Sr Dsnr	Srv Mgr	CAD II	GPS	Clerical	Other		
2023 RATES WYOMING		125	106	98	98	94	88	86	86	83	48	63	
Preliminary Design Phase													Phase Total
Inspection and Testing	2		2									6950	7396
Survey	1				2			4	2	4		100	1115
Analysis/Report of Findings	8				8				4		4	50	2386
Preliminary Designs	20				40				40			50	9630
Meetings and Coordination	12				12				12			49	3673
													\$ 24,200.00
Final Design Phase													
Demolition Plan	2				8				16				2330
Site Layout/Grading/Utilities	2				8				16				2330
Lift Station Design	20				80				80				16660
Engineer's Design Report for BOPU	8				40				16			63	6151
Cost Estimates	2				12				12				2374
Meetings and Coordination with Supplier	40				40				40				12080
													\$ 41,925.00
Operations & Maintenance Plan													
O & M Coordination	2		2		2				2				800
													\$ 800.00
Construction Admin													
Submittal Reviews	2		2		8				2				1364
Address RFIs	3				12								1503
Site investigations	20		60		16				8		12	503	11807
Bidding	12				16				12		4	100	4352
As-Builts	2				12				12			100	2474
													\$ 21,500.00
Hours:													
	158	0	66	0	316	0	0	4	274	4	20		
													TOTAL \$ 88,425.00

2023 Cheyenne Fee Schedule

Exhibit B - Price Proposal



Personnel Rate Per Hour

Principal of Firm	\$125.00
Senior Project Engineer (Licensed)	\$106.00
Project Manager/Construction Manager	\$98.00
Project Engineer (Licensed)	\$98.00
Professional II (Licensed)	\$94.00
Professional I (E.I.)	\$88.00
CAD Specialist/Senior Designer/Survey Manager	\$86.00
Senior Technician/CAD Drafter II	\$83.00
Technician III/CAD Drafter I	\$77.00
Technician II	\$73.00
Technician I	\$63.00
Clerical/Administration	\$63.00

Please Note: Legal deposition is charged at 1.5x the hourly rate and legal testimony time charged at 2x the hourly rate.

Expenses

Travel & Meals (out of town, if required)	Actual Cost
Outside Professional Fees (approved by client)	Actual Cost
Miscellaneous Expenses/Supplies/ Survey Staking Supplies	Actual Cost
Postage	Actual Cost
Mileage	\$0.60 Mile

Reproduction

Photocopies (8-1/2" x 11")	\$0.15 each
Photocopies (Legal or 11" x 17")	\$0.30 each
Large Format Prints/Copies (Paper)	\$1.50 each
Large Format Prints/Copies (Mylar)	\$15.00 each
Presentation / Color Plots (24" x 36")	\$4.00 each

Equipment Rental Charges

GPS Receivers (each)	\$48.00 hour
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ANY PROJECT THAT IS A MULTI-YEAR PROJECT WILL INCLUDE A STANDARD 3% INCREASE IN HOURLY BILLING RATES FOR EACH YEAR FOLLOWING PROJECT INCEPTION DATE.

BenchMark ENGINEERS, PC

Quality minded, community spirited.

City of Cheyenne / Exhibit B - Price Proposal / Professional Services Agreement / RFP 4-23

Transfer Station Lift Station Upgrade or Replacement Project

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